

STATE OF NEW YORK

5542--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. HYNDMAN -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to including underrepresented ethnic groups in the admission criteria for the science and technology entry program and collegiate science and technology entry program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings. Science, Technology, Engineering,
2 and Mathematics (STEM) professions play a crucial role in New York
3 state's economy, workforce development, and innovation. STEM fields are
4 a cornerstone of economic growth and workforce expansion in New York
5 state.
6 STEM and allied health professions are essential to New York's econom-
7 ic growth, technological advancement, and healthcare infrastructure.
8 While STEM fields drive innovation and economic development, allied
9 health professionals play a crucial role in ensuring accessible and
10 high-quality healthcare services. Continued investment in education,
11 workforce development, and industry partnerships will be critical to
12 sustaining both fields. Moving forward, access to STEM and allied health
13 training programs will be essential in meeting workforce demands and
14 supporting the well-being of all New Yorkers.
15 The Science and Technology Entry Program (STEP) and Collegiate Science
16 and Technology Entry Program (CSTEP) are important tools to ensure that
17 these programs are available to all aspiring members of the STEM and
18 licensed professional workforces. These programs will continue to build
19 on their legacy of ensuring representation in the fields they serve,
20 which will strengthen our state's workforce and economy.
21 Representation in the workforce is critical, especially in New York's
22 healthcare workforce. A 2017 study published in the Journal of General

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 Internal Medicine found that Black and Hispanic patients were more like-
2 ly to report feeling comfortable discussing sensitive topics with a
3 provider of the same race or ethnicity. A 2019 study published in the
4 Journal of Health Care Administration found that culturally competent
5 care was associated with improved patient satisfaction, adherence to
6 treatment, and health outcomes. Further a 2020 report by the National
7 Academies of Sciences, Engineering, and Medicine found that a diverse
8 healthcare workforce can improve access to care for underserved popu-
9 lations. These benefits are not limited to healthcare. A 2017 study
10 published in Nature and a 2019 study in the Harvard Business Review
11 found that diverse teams outperform homogenous teams in terms of creati-
12 vity and problem-solving. This means that the health and economic future
13 of our state is dependent on the diversity of our workforce.

14 STEP and CSTEP have a successful history of bringing underrepresented
15 students into STEM licensed professions and health professions fields.
16 These programs create academic opportunities for students who have faced
17 disadvantages and discrimination. To ensure that these programs can
18 continue to fulfill their mission of delivering opportunity and equity
19 to students, the programs' admissions criteria must be updated to be in
20 line with recent legal findings.

21 The STEP and CSTEP admissions criteria must allow for admission of any
22 student from any group underrepresented in a STEM, licensed profession
23 field or health profession field. This will require that the New York
24 State Board of Regents identify underrepresentation in eligible career
25 fields prior to the periodic release of RFPs for STEP and CSTEP. Under-
26 representation shall be determined using available workforce statistics
27 and defined in rules. This determination will provide "focused and meas-
28 urable objectives" (as required by the U.S. Supreme Court) while also
29 having a definable endpoint: the correction of underrepresentation in a
30 specific professional field reviewed on a regular basis (the contractual
31 period defined by an individual RFP).

32 Every ethnic or racial group is underrepresented in various workforce
33 fields in New York. STEP and CSTEP will help rectify that issue and
34 ultimately root out the pernicious impact of underrepresentation in
35 various professions.

36 § 2. Subdivisions 1 and 5 of section 6454 of the education law, as
37 added by chapter 31 of the laws of 1985, subparagraph 4 of paragraph a
38 of subdivision 5 as amended by chapter 439 of the laws of 1988, are
39 amended and a new subdivision 9 is added to read as follows:

40 1. As used in this section:

41 a. ~~["Council" means the council on professional career opportunity~~
42 ~~created pursuant to article forty four of the executive law;~~

43 ~~b.]~~ "Eligible students" shall mean secondary school students inter-
44 ested in pursuing a career in an eligible profession as defined in para-
45 graph c of this subdivision, who are either economically disadvantaged
46 or ~~[minorities historically]~~ a member of an ethnic group that is under-
47 represented in the ~~[scientific, technical, health, and health-related~~
48 ~~professions as defined by the regents after consultation with the coun-~~
49 ~~cil; and]~~ eligible profession they are interested in pursuing.

50 ~~[c.]~~ b. "Eligible applicant" shall mean an institution of postsecon-
51 dary education or a consortia of such institutions.

52 c. "Eligible profession" shall mean a scientific, technical, health,
53 health-related profession or any profession licensed pursuant to title
54 eight of this chapter.

5. a. Grants shall be awarded to eligible applicants based upon criteria established by the commissioner after consultation with the council, including, but not limited to, the following:

(1) an established record of conducting effective collaborative educational programs with neighboring secondary schools;

(2) the ability and willingness to cooperate with other postsecondary institutions in operating a program funded pursuant to this section; **and**

(3) the capacity to secure or provide additional support in amounts equal to at least twenty-five percent of the grant sought under this section through private and other governmental sources and through in-kind services[+]

~~(4) a location within a school district with an enrollment comprised of at least twenty percent minority group students or a location near such a district that is accessible by public transportation].~~

b. ~~[The commissioner shall select the grant recipients after consultation with the council.]~~ To the fullest extent practicable the commissioner ~~[and the council]~~ shall ensure that grants are awarded to eligible applicants in a diversity of regions of the state.

9. The department shall periodically review workforce data to determine levels of ethnic representation in eligible professions.

§ 3. Subdivisions 1, 2 and 3 of section 6455 of the education law, as added by chapter 285 of the laws of 1986, paragraph (a) of subdivision 2 and paragraph (a) of subdivision 3 as amended by chapter 26 of the laws of 2019, and the opening paragraph of subparagraph (ii) of paragraph (a) of subdivision 2 and the opening paragraph of subparagraph (ii) of paragraph (a) of subdivision 3 as amended by chapter 669 of the laws of 2022, are amended to read as follows:

1. General requirements. The commissioner shall award grants to degree-granting institutions in New York or to consortia of such institutions to be used for the purpose of increasing access by ~~[minority]~~ **underrepresented** or disadvantaged students to academic programs that have been registered by the commissioner and that prepare students either for licensure in the professions or for employment in scientific and technical fields.

2. Undergraduate programs. (a) (i) Undergraduate science and technology entry program moneys may be used for tutoring, counseling, remedial and special summer courses, supplemental financial assistance, program administration, and other activities which the commissioner may deem appropriate. To be eligible for undergraduate collegiate science and technology entry program support, a student must be a resident of New York, or meet the requirements of subparagraph (ii) of this paragraph, and must be either economically disadvantaged or ~~[from a minority]~~ **a member of an ethnic group [historically underrepresented in the scientific, technical, health and health-related professions] that is underrepresented in the eligible profession or field they are pursuing, as defined by the regents prior to the release of periodic applications for funding,** and must demonstrate interest in and a potential for a professional career if provided special services. Eligible students must be in good academic standing, enrolled full time in an approved, undergraduate level program of study, as defined by the regents.

(ii) An applicant who is not a legal resident of New York state, but who is a United States citizen, a permanent lawful resident, an individual who is granted U or T non-immigrant status pursuant to the Victims of Trafficking and Violence Protection Act of 2000, a person granted temporary protected status pursuant to the Federal Immigration Act of 1990, an individual of a class of refugees paroled by the attorney

1 general of the United States under [~~his or her~~] such attorney general's
2 parole authority pertaining to the admission of noncitizens to the
3 United States, or an applicant without lawful immigration status, shall
4 be eligible for an award at the undergraduate level of study provided
5 that the student:

6 (1) attended a registered New York state high school for two or more
7 years, graduated from a registered New York state high school and
8 applied for attendance at the institution of higher education for the
9 undergraduate study for which an award is sought within five years of
10 receiving a New York state high school diploma; or

11 (2) attended an approved New York state program for a state high
12 school equivalency diploma, received a state high school equivalency
13 diploma and applied for attendance at the institution of higher educa-
14 tion for the undergraduate study for which an award is sought within
15 five years of receiving a state high school equivalency diploma; or

16 (3) is otherwise eligible for the payment of tuition and fees at a
17 rate no greater than that imposed for resident students of the state
18 university of New York, the city university of New York or community
19 colleges as prescribed in subparagraph eight of paragraph h of subdivi-
20 sion two of section three hundred fifty-five or paragraph (a) of subdivi-
21 sion seven of section sixty-two hundred six of this chapter.

22 Provided, further, that a student without lawful immigration status
23 shall also be required to file an affidavit with such institution of
24 higher education stating that the student has filed an application to
25 legalize [~~his or her~~] such student's immigration status, or will file
26 such an application as soon as [~~he or she~~] such student is eligible to
27 do so.

28 (b) Applications for funding shall be submitted by eligible insti-
29 tutions to the department in accordance with requirements established by
30 the commissioner. Priority consideration shall be given to institutions
31 which coordinate their efforts to increase [~~minority access~~] represen-
32 tation of underrepresented ethnic groups with similar activities for
33 programs at the secondary level in accordance with this section. Grants
34 shall be awarded based on criteria established by the commissioner.

35 3. Graduate programs. (a) (i) Graduate science and technology entry
36 program moneys may be used for recruitment, academic enrichment, career
37 planning, supplemental financial assistance, review for licensing exam-
38 inations, program administration, and other activities which the commis-
39 sioner may deem appropriate. To be eligible for graduate collegiate
40 science and technology entry program support, a student must be a resi-
41 dent of New York, or meet the requirements of subparagraph (ii) of this
42 paragraph, and must be either economically disadvantaged or [~~from~~] a
43 [~~minority~~] member of an ethnic group [~~historically~~] that is underrepre-
44 sented in the [~~scientific, technical and health-related professions~~]
45 eligible profession or field they are pursuing as defined by the regents
46 prior to the release of periodic applications for funding. Eligible
47 students must be in good academic standing, enrolled full time in an
48 approved graduate level program, as defined by the regents.

49 (ii) An applicant who is not a legal resident of New York state, but
50 either is a United States citizen, a permanent lawful resident, an indi-
51 vidual who is granted U or T non-immigrant status pursuant to the
52 Victims of Trafficking and Violence Protection Act of 2000, a person
53 granted temporary protected status pursuant to the Federal Immigration
54 Act of 1990, an individual of a class of refugees paroled by the attor-
55 ney general of the United States under [~~his or her~~] such attorney gener-
56 al's parole authority pertaining to the admission of noncitizens to the

1 United States, or an applicant without lawful immigration status shall
2 be eligible for an award at the graduate level of study provided that
3 the student:

4 (1) attended a registered approved New York state high school for two
5 or more years, graduated from a registered New York state high school
6 and applied for attendance at the institution of higher education for
7 the graduate study for which an award is sought within ten years of
8 receiving a New York state high school diploma; or

9 (2) attended an approved New York state program for a state high
10 school equivalency diploma, received a state high school equivalency
11 diploma and applied for attendance at the institution of higher educa-
12 tion for the graduate study for which an award is sought within ten
13 years of receiving a state high school equivalency diploma; or

14 (3) is otherwise eligible for the payment of tuition and fees at a
15 rate no greater than that imposed for resident students of the state
16 university of New York, the city university of New York or community
17 colleges as prescribed in subparagraph eight of paragraph h of subdivi-
18 sion two of section three hundred fifty-five or paragraph (a) of subdivi-
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21 shall also be required to file an affidavit with such institution of
22 higher education stating that the student has filed an application to
23 legalize [~~his or her~~] such student's immigration status, or will file
24 such an application as soon as [~~he or she~~] such student is eligible to
25 do so.

26 (b) Applications for funding shall be made by eligible institutions in
27 accordance with requirements established by the commissioner. Grants
28 shall be awarded based on criteria established by the commissioner.
29 Priority consideration shall be given to institutions which coordinate
30 their efforts to increase [~~minority access~~] representation of underrep-
31 resented ethnic groups with similar activities at the undergraduate
32 level.

33 § 4. This act shall take effect on the thirtieth day after it shall
34 have become a law. Effective immediately, the addition, amendment and/or
35 repeal of any rule or regulation necessary for the implementation of
36 this act on its effective date are authorized to be made and completed
37 on or before such effective date.